Line 3

Case Name: *Lee Drone v. Peter D. Bear, et al.*

Case No.: 25CV480264

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Specially-Appearing Defendant Dane County Title Company, LLC ("Dane County Title" or "Defendant") moves under Code of Civil Procedure Section 418.10(a)(1) to Quash Service of Summons on the grounds that the Court lacks jurisdiction over Dane County Title, a Wisconsin company. Notice of Motion (the "Motion") at 1:23-66 (filed: January 20, 2026). In the alternative, Dane County Title moves under Code of Civil Procedure Section 418.10(a)(2) to dismiss this matter on the grounds that Santa Clara County is an inconvenient forum. *Id.* at 26-27.

The Motion came on for hearing on August 7, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

According to the Complaint, on November 1, 2021, Plaintiff and Ian Goodman , as co-owners, purchased the real property located at 1430 Ellen Avenue, Madison, Wisconsin ("Wisconsin Property"). Dane County Title Company acted as the settlement agent for the transaction (Complaint ¶¶ 1, 2)

Some dispute arose between Plaintiff and Ian Goodman. As a result, Ian Goodman, through his attorney Peter Bear, sent various email communications to Plaintiff regarding their co-ownership agreement, offer to purchase Plaintiff's share, Goodman's petition for harassment injunction, and service of the restraining order. Peter Bear and Plaintiff exchanged email communications pertaining to the legal proceedings in Wisconsin, discovery, settlement terms and proposals. Some of the email communications contained production of Plaintiff's loan application without redacting Plaintiff's private information, and Goodman's petition, which contained false statements. (Complaint ¶¶ 2-10, 26-107)

As a result of Defendants' wrongful acts and communications, Plaintiff was unlawfully excluded from use and disposition of the Wisconsin Property; has incurred litigation costs, travel costs, loss of work time; has suffered reputational harm and emotional distress. (Complaint ¶¶ 197-198)

Plaintiff initiated this action on November 21, 2025, alleging 84 causes of action:

Count 1 - Negligent Mishandling of Property-Related Financial Records; Breach of custodial duty as settlement agent

Count 2- Negligent Misrepresentation; Failure to preserve accuracy in closing documentation

Count 3 - Intentional Interference with Property Rights; Attorney-assisted coercive real-estate proposal used to pressure surrender of co ownership interest

Count 4- Fraudulent Misrepresentation; Misleading use of attorney signature block to induce reliance

Count 5 - Economic Duress; Embedding legal threats. deadlines, and financial pressure to coerce property transfer

Count 6- Unlawful Restraint on Speech and Conduct; Embedding lifetime no-contact and behavioral restrictions in attorney-shaped proposal

Count 7 - Constructive Fraud; Exploiting implied attorney expertise to conceal material risks and liabilities

Count 8- Coerced Waiver of Legal Rights; Embedding unlawful waivers of communication and legal rights inside coercive proposal

Count 9 - Fraudulent Misrepresentation; False assurances regarding financial terms. legal effect, and liability consequences

Count 10 - Intentional Interference with Contractual Relations; Attorney-driven interference with existing co-ownership and contractual obligations

Count 11- Abuse of Process under California Common Law; Retaliatory use of judicial process after refusal to surrender property

Count 12 - Negligent Misrepresentation; Use of false Wisconsin address to obtain defective service and jurisdiction

Count 13 – Defamation; Fabricated claim of access to weapons to influence judicial process

Count 14 - Concealment of Material Facts; Failure to identify the subject property in official service record;

Count 15 - Intentional Interference with Property Rights; Coercive transmission of renewed proposal and affidavit through attorney intermediary

Count 16 - Fraudulent Misrepresentation of Judicial Status; Misuse of void temporary restraining order to coerce property transfer

Count 17 - Economic Duress; Use of pending and prospective judicial filings as leverage for property transfer

Count 18 - Intentional Interference with Property Rights; Re-issuance of purchase offer with behavioral restrictions and deadline pressure

Count 19 - Misrepresentation of Service by Publication and Default Status; False representation of completed service used to induce agreement

Count 20 - Economic Duress; Quid-pro-quo settlement linked to anticipated court success

Count 21- Intentional Interference with Property Rights; Use of electronic communication to coerce property transfer outside judicial process

Count 22 – Defamation per se; Use of professional authority to impair liberty and property interests

Count 23 - Abuse of Process; Coercive use of litigation and publicity threats to obtain property

Count 24 - Economic Duress; Economic coercion through quid-pro-quo agreement to withhold legal action ad

Count 25 - Fraudulent Misrepresentation; Use of asserted judicial authority to pressure settlement

Count 26 - Abuse of Process; Framing separate legal and private issues to extend leverage

Count 27 - Constructive Fraud; Failure to include lender release or mortgage protection

Count 28 - Civil Conspiracy to Commit Fraud; Joint action to divest property interest without due process

Count 29 - Abuse of Process; Use of judicial order as instrument of private coercion

Count 30 - Fraudulent Concealment; Presentation of facially neutral documents masking threats

Count 31 - Economic Duress; Attorney's direct issuance of coercive proposal through misuse of his professional role

Count 32 - Negligent Entrustment of Confidential Financial Information; Improper upstream disclosure of sensitive lender-file materials to an unauthorized attorney

Count 33 - Negligent Mishandling of Records; Failure to safeguard co-owned financial documents prior to transmission to third parties

Count 34 - Invasion of Privacy (Informational Privacy); Disclosure of Plaintiff's lender-file document by co-owner outside lawful process

Count 35 - Causation of Public Disclosure of Private Facts; Upstream financial-document disclosure resulting in downstream public exposure

Count 36 - Abuse of Process; Failure to provide corroborating materials referenced in sworn affidavit

Count 37 - Abuse of Process; Withholding chain-of-custody information for recordings referenced in sworn filings

Count 38 - Abuse of Process; Procedural deprivation through unserved and incomplete filing

Count 39 - Slander of Title; Misrepresentation of property interest to diminish recorded title

Count 40 - Defamation per se; Insertion of irrelevant personal attacks to bias judicial proceeding

Count 41 - Abuse of Process; Application of waiver theory to nullify jurisdictional protections

Count 42 - Abuse of Process; Evasion of lawful service requirements through unauthorized delegation

Count 43 - Abuse of Process; Failure to correct co-counsel's unlawful service conditions

Count 44 - Abuse of Process; Evasion of lawful service requirements by providing invalid address

Count 45 - Abuse of Process; Unlawful conditioning of procedural rights on non-statutory terms

Count 46 - Abuse of Process; Expansion of unauthorized service demands across multiple proceedings

Count 47 - Civil Conspiracy to Commit Abuse of Process; Coordinated evasion and obstruction of lawful service between co-counsel

Count 48 - Abuse of Process; Failure to ensure lawful service depriving notice and participation

Count 49 - Abuse of Process; Neglect of mandatory service obligations resulting in denial of notice

Count 50 - Abuse of Process; Improper electronic service of initiating pleadings without authorization

Count 51 - Abuse of Process; Tacit participation in unauthorized electronic service of pleadings

Count 52 - Abuse of Process; Improper timing and electronic delivery of hearing evidence without adequate notice

Count 53 - Public Disclosure of Private Facts; Use and circulation of outdated and protected correspondence to influence judicial proceedings

Count 54 - Civil Conspiracy to Commit Abuse of Process; Joint preparation and submission of unauthorized hearing exhibits

Count 55 - Intentional Misrepresentation Regarding Property Ownership; Initial misrepresentation establishing ongoing ownership-pressure scheme

Count 56 - Unfair Business Practices (Pattern of Fraudulent Conduct); Linking renewed proposal, affidavit, and threats to earlier fraudulent acts

Count 57 - Unfair Business Practices (Use of judicial Process to Coerce Property Transfer); Integration of proposal, petition, and service filings into continuing pattern of wrongful acts

Count 58 - Civil Conspiracy to Commit Fraud; Affidavit used as key act supporting ongoing fraudulent scheme

Count 59 - Unfair Business Practices (Pattern of Fraudulent and Coercive Conduct); Incorporating December 19 email and offer as additional acts in ongoing scheme

Count 60 - Abuse of Process; Use of belief-based affidavit and evidence refusal as continuing acts of obstruction

Count 61 - Unfair Business Practices (Evidence Obstruction and Coercive Settlement); Use of evidence refusal, belief-based affidavit, and coercive settlement as continuing acts

Count 62 - Public Disclosure of Private Facts; Integration of January 8, 2024, leak into continuing pattern of wrongful disclosure

Count 63 - Invasion of Privacy (Informational Privacy); Integration of Ian Goodman's disclosure into ongoing pattern of privacy invasion and coercive conduct

Count 64 - Civil Conspiracy to Commit Abuse of Process and Fraud; Obstruction, threats, and false-record email cluster as related acts in ongoing scheme

Count 65 - Abuse of Process; Defective filing, false statements, and jurisdictional manipulation as acts of misuse of process

Count 66 - Abuse of Process; Use of service obstruction as continuing acts of misuse of process

Count 67 - Economic Duress and Coercive Use of Litigation Threats; Use of threatened litigation and fear to obtain property interests

Count 68 - Abuse of Process; Advocate-as-witness misconduct and fabrication of evidence

Count 69 - Abuse of Process; Use of interstate email to circumvent lawful service and advance injunction proceedings

Count 70 - Invasion of Privacy (Informational Privacy); Unauthorized acquisition and initial disclosure of personally identifiable and financial data

Count 71 - Invasion of Privacy (Informational Privacy); Unauthorized use of confidential financial records outside any lawful process

Count 72 - Abuse of Process; Withholding evidence and altering records to impair defense

Count 73 - Abuse of Process; Interstate email scheme to misrepresent service and gain procedural advantage

Count 74 - Economic Duress through Coercive Settlement Terms; Wrongful use of fear and litigation threats to obtain property rights

Count 75 - Economic Duress through Coordinated Litigation and Reputation Threats; Coercive litigation threats and property-surrender demands in coordinated package

Count 76 - Economic Duress via Threatened Litigation and Reputational Harm; Fear of litigation and reputation used as economic coercion

Count 77- Economic Duress through Injunction-Conditioned Property Demands; Pattern of injunction-conditioned property demands as ongoing course of economic duress

Count 78 - Invasion of Privacy (Informational Privacy); Interstate electronic release of confidential loan-application data

Count 79 - Intentional Misrepresentation (Fraudulent Inducement); Use of interstate email for coercive property offers and fraudulent inducement

Count 80 - Abuse of Process; Suppression of recordings and use of evidence requests for settlement pressure

Count 81 - Abuse of Process and Coercive Interference with Petition Rights; Conditioning property relief on silence and withdrawal of participation

Count 82 - Abuse of Process (False Affidavit Use); Submission of affidavit containing belief-based, materially false statements

Count 83 - Negligent Handling of Confidential Financial Information; Negligent custodial handling enabling unauthorized disclosure of loan records

Count 84 - Civil Conspiracy to Commit Fraud and Abuse of Process; Coordinated scheme using misrepresentation and misuse of process to impair property rights.

II. Legal Standard on Motion to Quash

“A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow" may move "to quash service of summons on the ground of lack of jurisdiction of the court over him or her" that results from lack of proper service. (Code. Civ. Proc. § 418.10(a)(1).) A defendant has 30 days after the service of the summons to file a responsive pleading. (Code. Civ. Proc. § 412.20(a)(3).) “Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant.” (*AO Alfa-Bank v. Yakovlev* (2018) 21Cal.App.5th 189, 202 [internal quotations marks and citation omitted].) To establish personal jurisdiction, compliance with statutory procedures for service of process is essential. (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371.) Defendant's knowledge of the action does not dispense with statutory requirements for service of summons. (*Kappel v. Bartlett* (1988) 200 Cal.App.3d 1457, 1466.)

When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. (See, *Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd.* (2019) 31 Cal.App.5th 543, 553.) “The plaintiff must do more than merely allege jurisdictional facts. It must present evidence sufficient to justify a finding that California may properly exercise jurisdiction over the defendant.” (*In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 110.) “If the plaintiff meets this initial burden, then the defendant has the burden of demonstrating that the exercise of jurisdiction would be unreasonable.” (*Jayone Foods, supra*, 31 Cal.App.5th at p. 553.)

III. Analysis of the Motion

A. Motion to Quash

To comport with federal and state due process, California may only exercise jurisdiction when a defendant has sufficient minimum contacts with the state to satisfy traditional notions of fair play and substantial justice. California recognizes two ways in which the constitutional minimum-contacts requirement may be satisfied.

General jurisdiction exists where the nonresident defendant's contacts with the forum state are so "extensive or wide-ranging" as to justify jurisdiction even for purposes unrelated to the defendant's contacts. (*Safe-Lab, Inc. v. Weinberger* (1987) 193 Cal.App.3d 1050, 1053; *Boaz v. Boyle & Co.* (1995) 40 Cal.App.4th 700, 717)

Alternatively, a court may exercise specific jurisdiction over a nonresident defendant only if: (1) the nonresident defendant has purposefully availed himself of forum benefits; (2) the controversy relates to, or arises out of, the nonresident defendant's contacts with the forum; and (3) the exercise of jurisdiction comports with fair play and substantial justice. The specific jurisdiction analysis focuses on the relationship between the defendant, the forum, and the litigation. (See, *Zehia v. Superior Court* (2020) 45 Cal.App.5th 543, 551–552.)

"The purposeful availment inquiry . . . focuses on the defendant's intentionality. This prong is only satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court's jurisdiction based on his contacts with the forum. Thus, the purposeful availment requirement ensures that a defendant will not be haled into a jurisdiction solely as a result of random, fortuitous, or attenuated contacts, or of the unilateral activity of another party or a third person. When a [defendant] purposefully avails itself of the privilege of conducting activities within the forum State, it has clear notice that it is subject to suit there, and can act to alleviate the risk of burdensome litigation by procuring insurance, passing the expected costs on to customers, or, if the risks are too great, severing its connection with the State." (*Pavlovich v. Superior Court*, (2002) 29 Cal. 4th 262, 269; internal citations and quotes omitted)

Courts apply the "effects test" to determine purposeful availment not only in defamation context but also in other intentional torts, including business torts. (See, *Id.* at 272-273, fn. 3; *IMO Industries, Inc. v. Kiekert AG* (3d Cir. 1998) 155 F.3d 254, 259-260, 261; *Far West Capital, Inc. v. Towne* (10th Cir. 1995) 46 F.3d 1071, 1077.) Under this test, intentional conduct occurring elsewhere may give rise to jurisdiction in California where it is calculated to cause injury in California. The defendant must expressly aim or target his conduct toward California, with the knowledge that his intentional conduct would cause harm in the forum. (See, *Pavlovich, supra,* 29 Cal. 4th at pp. 271–273; *Calder v. Jones* 465 U.S. 783, 788-790.) California courts emphasize that the analysis must focus on the defendant's contacts with the forum state itself, and not merely the defendant's contacts with a person who resides there. The proper inquiry is whether the defendants' conduct connects them to the forum in a meaningful way. (See, *Burdick v. Superior Court*, (2015) 233 Cal.App.4th 8, 13.)

In this case, specially-appearing Defendant contends that Plaintiff cannot make the necessary showing that it purposefully availed itself of the privilege of conducting business in California because (1) its office is located in Wisconsin, (2) it has no offices in California, (3) it does not perform escrow or title services for properties located in California, (4) it does not advertise in California, (5) Plaintiff's claims arise out of Dane County Title Company's services rendered in Wisconsin for a Wisconsin real property, and (5) Plaintiff personally came to Defendant's offices in Wisconsin for its services. (Motion at 5:14-21) Submitted Declaration of Tammy Janson supports Defendant's contention.

In opposition, Plaintiff contends that his Complaint is about Defendant's dissemination of his private financial information and not about the title to the Wisconsin Property or the validity of the underlying transaction. More specifically, Plaintiff alleges in his complaint and argues in his Opposition that Cane County Title Company included his Uniform Residential Loan Application ("URLA") within shared closing materials that was distributed beyond lender underwriting channels. And Plaintiff argues that those allegations are sufficient to defeat the motion to quash. (Opposition at 2:24-3:26; Complaint ¶¶ 2, 24)

But Plaintiff's arguments fail for two independent reasons:

1. California Rules of Court, Rule 3.1113 requires a memorandum that "contain[s] a statement of facts, <u>a concise statement of the law</u>, evidence and arguments relied on, and a <u>discussion of the statutes, cases, and textbooks cited in support of the position advanced.</u>" (California Rules of Court, Rule 3.1113(b); emphasis added.) Here, Plaintiff cites no legal authority in support of his Opposition. A party's failure to provide a memorandum as required by the Rule may be considered an "admission that the [opposition] is without merit and cause for its denial." (Cal. Rules of Court, Rule 3.1113(a), (b); *In re Marriage of Falcone & Fyke* (2012) 203 Cal.App.4th 964, 976.).

2. The Complaint does not allege, nor does Plaintiff submit any competent evidence showing Defendant's conduct was aimed at California and calculated to cause injury in California. Instead, Plaintiff incorrectly argues that mere allegations of his Complaint are sufficient to establish jurisdiction over Defendant. (Opposition at 3:12-26) But Plaintiff must do more than merely allege jurisdictional facts to satisfy his burden. He must present evidence justifying a finding that California may properly exercise jurisdiction over the Defendant. (See, *In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 110.)

So based on those two independent reasons the Court, in the broad exercise of its discretion, **GRANTS** the Motion to Quash.

B. Motion to Dismiss about Inconvenient Forum

In the alternative, Defendant asks for an order dismissing this matter on the grounds that Santa Clara County is an inconvenient forum.

But as the Court has already decided above to GRANT Defendant's Motion to Quash service of Summons and Complaint, the Court need not and does not reach Defendant's alternative argument to dismiss about an inconvenient forum.

IV. Conclusion & Order

Specially-Appearing Defendant Dane County Title Company, LLC's Motion under Code of Civil Procedure Section 418.10(a)(1) to Quash Service of Summons is **GRANTED.**

SO ORDERED.

Date: August 7, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 4

Case Name: *Varrick Partners, LLC v. Yellowwood Capital, Inc., et al.*

Case No.: 21CV384705 (Consolidated with Case No. 23CV413069)

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Rekhi Bros. Inc. ("Plaintiff" or "RB") moves under Code of Civil Procedure Sections 425.16(c) and 128.5 for sanctions, specifically for RB's reasonable attorneys' fees and costs incurred for the anti-SLAPP motion, against Defendant Kenneth Hurley ("Defendant" or "Hurley") in the amount of no less than $21, 202.50. Notice of Motion (the "Motion") at 1:4-7 (filed: Feb. 13, 2026).

The Motion is made on the grounds that Hurley filed a special motion to strike that, according to Plaintiff, is meritless and any reasonable attorney would know that the special motion cannot survive the "arising from" prong of the anti-SLAPP statute. *Id.* at 11-13. In addition, Hurley was afforded the statutorily mandated 21-day safe harbor period, yet he failed to withdraw or amend the frivolous special motion to strike.

The Motion came on for hearing on August 7, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

BACKGROUND

On June 25, 2021, Varick Partners, LLC ("Varick") initiated a civil action against Yellowwood Capital, Inc., Mark Gibbs ("Gibbs"), and Rana Rekhi under Case No. 21CV384705. On October 6, 2022, Varick filed a verified First Amended Complaint. On March 17, 2023, Rekhi Bros. Inc. ("RB") initiated an action against Varick and Kenneth Hurley ("Hurley") under Case No. 23CV413069. On August 8, 2025, Rekhi filed a First Amended Complaint.[7] Both these cases were consolidated under Case No. 21CV384705.

According to RB's FAXC, RB and Wine Globe Holdings, LLC ("Holdings") entered in an agreement whereby Holdings agreed to purchase, and RB agreed to sell substantially all of RB's assets for over $600,000. (FAXC, ¶ 7.) The agreement was thereafter amended. (FAXC, ¶ 8.) As amended, Varick and Holdings executed a promissory note in favor of RB calling for payments in three installments and then escrow closed in March 2020. (FAXC,

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[7] The order on Hurley's anti-SLAPP refers to Rekhi's pleading as the first amended cross-complaint or FAXC. The Court does the same here. (See Court's February 13, 2026 Order, p. 1.)